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U.S. Department of Homeland Security
U.S. Citizenship and Immigration Services
Nebraska Service Center
P.O. Box 87400
Lincoln, NE 68501-7400

REQUEST FOR EVIDENCE

Notice Date	May 4, 2026
Receipt Number	LIN2590187433
Case Type	I-140, Immigrant Petition for Alien Worker
Requested Classification	Advanced Degree Professional — National Interest Waiver, INA § 203(b)(2)(B)
Petitioner	BRASCH, Ilona Marta (self-petitioner)
Beneficiary	BRASCH, Ilona Marta
A-Number	A 234 567 891
Received Date	November 14, 2025
Priority Date	November 14, 2025
Page Count of This Notice	6
RESPOND BY	August 2, 2026

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WHY WE SENT YOU THIS NOTICE

We reviewed the Form I-140 petition you filed and the evidence submitted with it. We need additional evidence before we can finish processing your case. This notice tells you what evidence we need and why the evidence already in the record is not enough.

This notice does not decide your case. It is not a denial. Sending additional evidence does not guarantee approval.

To establish eligibility for a national interest waiver, the record must first show that the beneficiary qualifies as a member of the professions holding an advanced degree or as an individual of exceptional ability under 8 CFR 204.5(k). If that threshold is met, the record must then satisfy the three-part framework set out in *Matter of Dhanasar*, 26 I&N Dec. 884 (AAO 2016):

- Prong 1 — the proposed endeavor has both substantial merit and national importance;
- Prong 2 — the beneficiary is well positioned to advance the proposed endeavor; and

- Prong 3 — on balance, it would be beneficial to the United States to waive the job offer and labor certification requirements.

The petitioner bears the burden of proof by a preponderance of the evidence.
INA § 291; *Matter of Chawathe*, 25 I&N Dec. 369 (AAO 2010).

WHAT WE NEED FROM YOU

Respond to each numbered item below. If you believe you already submitted evidence that answers an item, identify it by exhibit letter and page number and explain how it meets the request. Do not simply resubmit the same evidence without explanation.

ITEM 1. THE PROPOSED ENDEAVOR

What the record shows. You submitted a narrative describing an endeavor involving selective lithium recovery from geothermal brine using layered-sorbent membrane modules, together with a statement of intended activities in the United States.

What we need. Confirm and, if necessary, supplement the description of the specific endeavor the beneficiary proposes to undertake. Your response must identify:

- 1.a. the precise nature of the work, stated with specificity rather than as a general field of research or a general occupation;
- 1.b. where and through what entity or entities the work will be carried out; and
- 1.c. the prospective impact of the endeavor, described in terms broader than the beneficiary's own employment or the interests of a single employer.

ITEM 2. QUALIFYING CLASSIFICATION — ADVANCED DEGREE

What the record shows. The record contains a curriculum vitae in which the beneficiary states that she holds a Doctor of Philosophy in Chemical Engineering awarded in 2019 by Vainamere Technical University, Tartu, Estonia, and a Master of Science awarded by the same institution in 2015. A self-prepared curriculum vitae is not primary evidence of an academic credential.

Why this is not sufficient. Under 8 CFR 204.5(k)(3)(i)(A), a petition for an advanced degree professional must be accompanied by an official academic record showing that the beneficiary has a United States advanced degree or a foreign equivalent degree. The record before us contains no official academic record and no evaluation of the foreign credential.

What we need. Submit all of the following:

- 2.a. a copy of the official diploma or degree certificate for each degree claimed;

- 2.b. official transcripts issued by the awarding institution, listing courses completed, credits, and the date the degree was conferred;
- 2.c. a credential evaluation from a recognized credential evaluation service establishing that each foreign degree claimed is equivalent to a degree awarded by an accredited United States college or university; and
- 2.d. certified English translations, together with the translator's certificate of competence, for any document not in English, as required by 8 CFR 103.2(b)(3).

ITEM 3. WELL POSITIONED TO ADVANCE THE ENDEAVOR

What the record shows. You submitted a curriculum vitae, a statement of the proposed endeavor, and letters from three individuals.

What we need. Submit evidence addressing the beneficiary's education, skills, knowledge, and record of success in related or similar efforts, and evidence of a model or plan for future activities, progress toward achieving the endeavor, and the interest of relevant parties. Evidence that may be submitted includes, but is not limited to:

- 3.a. documentation of the specialised knowledge and skills the beneficiary brings to the endeavor, and of the positions in which they were acquired;
- 3.b. documentation of the beneficiary's role, responsibilities, and results in prior projects, including any evidence that prior efforts produced a working result rather than a proposal;
- 3.c. published articles or other work product authored by the beneficiary, with evidence of where and when each was published; and
- 3.d. a plan describing the activities the beneficiary intends to carry out, the resources available to carry them out, and the milestones by which progress can be measured.

ITEM 4. IMPACT OF THE BENEFICIARY'S PUBLISHED WORK

What the record shows. The record refers to the beneficiary's publications and to their reception in the field.

What we need. Submit objective documentary evidence, from sources independent of the beneficiary and of any organization she founded, controls, or is employed by, showing the degree to which her published work has influenced others. Such evidence may include:

- 4.a. a citation report identifying the works that cite the beneficiary's publications, with the citing authors, their affiliations, and the publication in which each citing work appeared;
- 4.b. the relevant excerpts of citing works, so that the nature of the reliance placed on

the beneficiary's findings can be assessed; and

- 4.c. evidence that a method, protocol, standard, or design attributed to the beneficiary has been adopted or reproduced by persons or institutions with no professional relationship to her.

ITEM 5. INTEREST OF INVESTORS, CUSTOMERS, USERS, OR GOVERNMENT ENTITIES

What the record shows. The record contains correspondence indicating preliminary interest by at least one entity in the beneficiary's technology.

Why this is not sufficient. Expressions of interest that are conditional, non-binding, or contingent on future events establish that an entity is aware of the beneficiary's work. They do not, without more, establish that relevant parties have committed resources to it.

What we need. Submit evidence of concrete, realized interest, such as:

- 5.a. executed contracts, purchase orders, subscription agreements, or service agreements naming the beneficiary or her organization as a party, signed and dated by all parties;
- 5.b. evidence of funding actually received — investment agreements, wire confirmations, capitalization tables, executed grant or award notices, or contract award notices — rather than applications, proposals, or submissions still pending decision;
- 5.c. financial records showing revenue attributable to the endeavor, such as invoices issued and paid, or federal or state business tax returns; and
- 5.d. if the endeavor is carried on through a United States business entity, evidence of that entity's existence and operation, including its articles of incorporation or organization, and evidence of the beneficiary's ownership interest and role.

ITEM 6. EXPERT OPINION LETTERS

What the record shows. You submitted letters from three individuals commenting on the beneficiary's work. Two of the authors identify themselves as the beneficiary's former doctoral supervisor and as a co-author of her publications. The third author identifies himself as an official of an entity that has itself corresponded with the beneficiary regarding a prospective deployment.

Why this is not sufficient. Letters from individuals who have supervised, collaborated with, or have a prospective business relationship with the beneficiary are given limited weight standing alone, because the authors are not independent of the beneficiary. Letters that recite conclusions without describing the underlying facts are likewise of limited probative value. *Matter of Caron International*, 19 I&N Dec. 791 (Comm'r 1988).

What we need. Submit:

- 6.a. letters from experts in the field who have not supervised the beneficiary, have not co-authored or collaborated with her, and have no employment, ownership, investment, or prospective commercial relationship with her or her organization;
- 6.b. for each letter in the record — including those already submitted — the author's curriculum vitae or a statement of the author's own credentials in the field;
- 6.c. for each such letter, a statement explaining how the author became aware of the beneficiary's work and on what specific documents or results the author's opinion rests; and
- 6.d. a written disclosure of any professional, financial, academic, or familial relationship between each author and the beneficiary.

ITEM 7. INTELLECTUAL PROPERTY CLAIMED

What the record shows. The record states that aspects of the beneficiary's sorbent-membrane process are the subject of a pending patent, and refers to that filing as evidence of the originality of her work. The record contains no document from any patent office.

What we need. Submit:

- 7.a. a copy of the issued patent, or of the published application, or the official filing receipt showing the application number, filing date, and the office in which it was filed;
- 7.b. documentation identifying every named inventor and the current assignee of record;
- 7.c. if the beneficiary claims that the invention has been put to practical use, evidence of that use, such as an executed license agreement, royalty statements, or documentation of a product incorporating the invention; and
- 7.d. if no application has in fact been filed, a written statement to that effect, together with a corrected description of the claim made in the record.

ITEM 8. BALANCING — BENEFIT OF WAIVING THE JOB OFFER REQUIREMENT

What the record shows. You submitted argument on the third prong of *Matter of Dhanasar*.

What we need. Submit evidence supporting the assertion that, on balance, it would be beneficial to the United States to waive the requirements of a job offer and thus of a labor certification. Relevant evidence includes:

- 8.a. an explanation of why it would be impractical for the beneficiary to secure a job

offer or for a United States employer to obtain a labor certification on her behalf;

8.b. a statement of the beneficiary's employment status and of whether the endeavor is carried on through self-employment or through an entity she controls;

8.c. evidence of urgency, if urgency is claimed, including any timetable, program deadline, or supply constraint that the endeavor is intended to address; and

8.d. an explanation of the benefit the United States would derive from the beneficiary's contributions notwithstanding the availability of other qualified workers.

HOW TO RESPOND

Submit all requested evidence together, in one response. We will make a decision on the evidence in the record at the time we make that decision; if you send documents in more than one mailing, we may decide the case before the later mailing arrives.

Place a copy of this notice on top of your response. Mail your response to:

USCIS Nebraska Service Center
Attn: I-140 RFE Response
P.O. Box 87400
Lincoln, NE 68501-7400

Your response must be received on or before August 2, 2026. We cannot extend this deadline.

IF YOU DO NOT RESPOND

If we do not receive your response by the date above, we will make a decision on the record as it now stands. That may result in denial of the petition or, where the record supports it, in revocation of a prior approval. A denial may not be appealed on the ground that evidence was available but not submitted.

ADDITIONAL INFORMATION

- Submit copies, not originals, unless we specifically ask for an original. We do not return documents submitted in support of a petition.
- Any document in a language other than English must be accompanied by a full English translation and by the translator's certification that the translation is complete and accurate and that the translator is competent to translate.
- Submitting the requested evidence does not limit our authority to request further evidence or to issue a notice of intent to deny.
- Do not send payment with your response. No additional fee is due at this time.

Sincerely,

Marcus D. Ferrand
Center Director, Nebraska Service Center
U.S. Citizenship and Immigration Services

Officer reference: NSC-2G / TCH2210